

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On December 22, 2022, a complaint was filed with the Spanish Agency for Data Protection against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the complained party).

The reasons for the complaint are as follows:

The complainant states that identity theft has occurred in the contracting and use of certain services with the complained telecommunications operator. They state that they request access to recordings of certain calls, but they are not provided.

They provide a procedure and resolution adopted by the Secretary of State for Telecommunications and Digital Infrastructures, a police report, a judicial expert opinion, and associated invoices.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party/ALIAS, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on February 9, 2023, as stated in the certificate in the file.

On April 25, 2023, a response was received by this Agency, once the complaint had been admitted for processing.

THIRD: On March 22, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

PREVIOUS POINT. Analysis of the complaint.

From the analysis of the complaint and the documentation attached to it, the following is derived:

- The complainant provides as a complaint document to this Agency a copy of a report that they state they have submitted to the Criminal Courts (no date of the report before the court is cited, nor is the document dated). From the description made in it, the document is from the year 2022, as it mentions that the facts occurred until February 2022, the date on which they state they canceled their service with the telecommunications operator (the complained party).
- Regarding the restriction of international calls, the complainant states in their complaint that "approximately 3 years ago" these events began. Since the document is from 2022, they would have started in 2019, a date that they also mention later in their complaint.
- In the complaint, the complainant states that they were often told that they had exceeded the limit of calls, leaving them without service and resuming it in an hour, finally indicating that they had not exceeded it. The complainant states that this made them think that their SIM card had been duplicated. However, it should be noted that when a SIM card is duplicated, the customer is not informed that they have exceeded the number of calls, nor is the line recovered in the manner described, having to issue a new duplicate that must be installed. The complainant also does not mention the dates of these incidents.
- On the other hand, they indicate that while in Italy in 2021, they could not use data in roaming, being told by the complained party that they had reached the allowed limit, which made them think that a SIM duplication had occurred. They indicate that the complained party denied this possibility. It should be noted that if a SIM card had been duplicated, they would have completely lost the line, not just the data in roaming.

- It is also mentioned in the complaint that on another occasion they received a call asking if they accepted a duplicate SIM. No exact or approximate date of this confirmation call is cited, which in any case halted the process of issuing the duplicate, so it was never carried out.
- They also mention that someone attempted a change of ownership of the line in March 2022. This was also an attempt that was not carried out, as the third party who tried to change the line's ownership did not know that it was inactive. They state that they asked the complained party who made the attempt and were informed that they could not provide that information.
- The complainant states that they can provide recordings of phone calls made by them to Customer Service of the complained party, but such recordings are not attached to their complaint to this Agency.

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- Provides 65 pages of invoices, in which there is no mark or indication of any charge or service.
- Provides a copy of a complaint filed with the National Police, dated September 13, 2021, in which it states that for approximately a year (in 2020) international calls have been restricted and that on September 3, 2020, the responding party confirmed that someone had requested her PIN and PUK. It is not recorded whether they were provided.

Regarding this matter, in her complaint submitted to the Court and to this Agency, the claimant states that someone may have fraudulently requested her PIN and PUK for her line via telephone. They indicated to her that they refused to provide it because it was not her.

- In the Resolution provided by the SETID, that body refrains from addressing the part of the claim concerning Data Protection and identity theft. It does state that the responding party must compensate the claimant for the service interruptions.

In the context of that SETID file, the responding party states in a written response to the SETID that the fraud department confirms that it has taken the necessary actions to provide an adequate and secure service, guaranteeing the rights of the customer and preventing fraud or illegal use of the service provided by the entity. It is acknowledged that there was no data available abroad and that therefore an amount is paid to the claimant as a quality guarantee.

- The claimant provides two documents from an expert:

A) A document with the logo of the National Association of Appraisers and Judicial Computer Experts, which consists of a request for information directed by the expert to the responding party on behalf of the claimant, and in which no technical analysis or technical opinion is expressed on any issue. The document requests the voice recordings for which international calls were restricted. This document is signed by the expert.

B) Another document dated December 23, 2021, consisting of two unnumbered pages, appearing incomplete due to its opening phrase "March 25 leak also showing another number...". The document apparently consists of an expert report or an extension of the expert report. The calls of March 25 and June 29 are mentioned as a possible origin of the restriction on the claimant's international calls. However, it should be noted that the recordings provided in the context of the SETID file are dated March 25 and June 11 (not June 29) of 2021, according to the written response of the responding party to that body, as cited above in this report.

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POINT 1. The claimed party has been requested to provide documentation proving that they conducted the identity verification of the applicant regarding the international call restrictions on the claimant's line, allegedly carried out in March and June 2021. Documentation is requested to substantiate these telephone contacts, the implementation of the security policy, and the details of said policy.

In this regard, the claimed party has stated that, after conducting the necessary checks, they have verified that during the indicated dates (March and June 2021), there are no records of any international call restrictions applied to the claimant's line.

They indicate that during the months of March and June 2021, only two recordings exist in the entity's systems, one from March 25, 2021, and another from June 11, 2021, and in both, there is no reference to a restriction on international calls. The first one refers to an offer with a 12-month commitment, and the other to the acquisition of a financed Apple iPhone 12 64GB Black device.

They indicate that there is indeed a record in the entity's systems of the restriction of international calls through the Mi Vodafone application, made on July 2 and July 14, 2021, a request that can only be made by the line holder through the Mi Vodafone mobile application, for which access with a username and password and two-factor authentication via OTP (One Time Password) to the holder's line is required.

They provide a document with screenshots from the systems indicating the international call restrictions made through the Mi Vodafone application, both of which were removed on the same day and through the same channel. It is noted in all of them as "seller" "MI VODAFONE ECARE."

Additionally, they indicate that in July 2021, a fraudulent case was classified in which the claimant alleged the existence of a restriction on international calls; however, it was verified that everything was functioning correctly by the Fraud Department. They indicate that what is recorded is the restriction of international calls through the aforementioned Mi Vodafone application.

POINT 2. It has been requested to provide the date until which the international calls were restricted.

The representatives of the claimed party state that restrictions on international calls were applied through the Mi Vodafone application on July 2, 2021, and were restored on the same day, July 2, 2021, and then again on July 14, 2021, which was also restored that same day. They reiterate that, to carry out these restrictions, the claimant must authenticate themselves through access with a username and password and two-factor authentication.

It is noted that in the expert report, the claimant states to the expert that a third party appropriated their mobile phone for a period of time at a conference, without mentioning the date of said incident.

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POINT 3. Regarding the recordings of the calls:

In the response following the Admission to Processing, the responding party stated that it is not possible to provide the telephone recordings related to the malicious actions referred to by the claimant, as such recordings are not available in the entity's systems. They declare that the telephone calls received by the customer service of the entity are recorded randomly and for the purpose of quality assurance in customer service.

They indicate that they have proceeded to inform the claimant of the actions taken through a new communication, a copy of which is provided, indicating that in this way they have made available to the claimant all the recordings of the telephone calls held with the Customer Service that are in the Vodafone systems.

There is a letter dated October 4, 2021, in which they state that they responded to her exercise of the right of access, addressed to the claimant, which states:

"Once the appropriate checks have been made and the facts described by the [claimant] analyzed, we inform you that regarding the request for recordings of the restrictions on international calls, held with a Customer Service operator of [the responding party], we inform you that the calls made to the Customer Service of [the responding party] are not recorded in their entirety, but rather randomly, a fact that is evidenced by the initial message when contacting Customer Service, which indicates that 'calls may be recorded' to improve service provision.

However, we attach recordings from March 25 and June 11, 2021, for your verification, which correspond to the contracts made with the Customer Service."

POINT 4. However, for verification purposes, the relationship and details of all contacts made on March 25, June 11, and June 29, 2021, including notes made by telephone/chat/email/etc. managers and a reflection of the actions taken in each contact, have been requested.

- It is verified in the documentation provided that on March 25, 2021, only telephone contacts regarding

invoice inquiries are recorded.

- It is verified that on June 11, 2021, there is an incoming contact at 15:22 claiming recognition of the days she could not use the service both at home and with the mobile line. Subsequently, on the same day, there is a "purchase" recorded as "terminal exchange" with "signature sent."

- It is verified that on June 29, 2021, there is an incoming contact at 14:04 regarding "invoice" and about calls that she did not make. Later on the same day at 18:38, the comment "contact with customer informs me that she is waiting for a claim where she states that she has been making international calls to her line and she does not make them since she called to restrict the calls and avoid those charges" is recorded.

POINT 5. The printout with the details of the case referenced in a document that the claimant sent to the responding party has been requested, which states:

"Likewise, it is confirmed by the fraud department with Id [...] that on July 2, 2021, the necessary actions have been taken, with the sole purpose of providing you with an adequate and secure service, guaranteeing your rights as a customer, and preventing fraud or illegal use of the service provided by Vodafone."

They provide a printout of the incident from July 2, 2021, where it is reflected in the recorded comments that in the call, it is claimed that someone called to deactivate the data, deactivate the reception of international calls, and other actions. The recording is requested to validate the person requesting these modifications, to conduct a study of the calls made in her name, to leave a note in the customer file verifying that they regularly call from another number requesting modifications to her mobile line, and that modifications be prevented if it is not her contracted number.

It is indicated, "Please see appropriate actions, right now she is without data, there is no restriction account regarding data." From the Working Group: Basic Fraud II, the following comment is recorded:

"From the fraud department, all necessary actions have been taken for the security of the account. To apply restrictions, the customer must contact customer service. Thank you."

For clarification, regarding the fact that the claimant did not have data abroad, the responding party has informed that they considered that the mobile line service was not provided correctly due to the lack of data abroad, for which the following amounts have been credited to the claimant: €255.94, €28, and €13.48. They provide the responses issued to the claimant in which the refunds are verified.

POINT 6. Information has been requested regarding the alleged change or attempt to change the ownership of the line after its cancellation, to which the responding party has indicated that the claimant proceeded to definitively cancel the line on February 7, 2022, and that there are no interactions recorded after this definitive cancellation. They indicate that the system does not allow further annotations to be made in the customer file once the cancellation has occurred.

They provide a screenshot stating that this is the last information in their system, with no information found regarding changes of ownership.

## LEGAL GROUNDS

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Competence

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In accordance with the functions conferred upon each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

## II

### Security of Processing

Article 32 of the GDPR stipulates the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law."

Subparagraph f) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures ('integrity and confidentiality')."

In this case, the complainant assumes, on several occasions, that their SIM card has been duplicated, following certain states of their line that do not occur when a supposed impersonator has duplicated the SIM card. Regarding the case of an attempted issuance of a duplicate SIM card, the date of which is not mentioned in the complaint, it is noted that the respondent requested confirmation from the complainant, so it was not carried out.

The only restrictions on international calls that have been substantiated were generated from the application used to access the client's private area, thus using the username and its associated password, so that, if they had been made by a third party, that person was aware of such credentials. No other restrictions requested through telephone calls to customer service have been substantiated, nor any other type of management carried out through that channel, nor has evidence of the existence of such management been provided.

Specifically, the change of ownership of the line that has been claimed could not occur, as the line had previously been deactivated.

The complainant acknowledges that a third party had physical access to their mobile device, so it is possible that this third party, in possession of their mobile phone or access credentials to the client's private area, carried out any type of action on their phone or mobile line.

For all these reasons, it is not observed that the principles relating to the processing of data or the security measures have been violated by the respondent.

## III

### Conclusion

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

In accordance with the above, it is AGREED by the Director of the Spanish Agency for Data Protection:

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FIRST: PROCEED TO FILE the present proceedings.

SECOND: NOTIFY this resolution to VODAFONE ESPAÑA, S.A.U., and to the claiming party.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

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